

EU AI ACT APPROVAL PACK – CARLOS MARTINEZ BOTO

1. PRIVATE ANSWER KEY

1. PROHIBITED

A natural language processing model scans internal emails, chat logs, survey responses, and collaboration tools to classify employees into “risk categories” related to activism, political alignment, or likelihood of union participation. It then determines promotions or dismissals.

Consulting decision: deny and redesign. This would violate EU AI Act prohibitions relating to manipulation, discrimination, and unlawful processing of sensitive personal data.

2. HIGH-RISK

A transportation authority deploys AI to manage railway signaling and prevent train collisions. A real-time AI safety platform analyzes train positions, track conditions, speed, and signaling data to optimize routing and automatically trigger emergency braking or signal overrides when collision risks are detected. Rail operations controllers supervise the AI system through a monitoring dashboard and can manually override routing decisions or emergency actions if necessary.

Consulting decision: approve with controls.

- Formal risk management and testing procedures
- Continuous human oversight capability
- Full logging and traceability of AI decisions
- Independent safety audits and cybersecurity testing
- Fallback manual signaling procedures in case of system failure

3. LIMITED RISK / TRANSPARENCY

A conversational AI voice assistant answers routine customer service questions such as order tracking, returns, refunds, and store policies. Callers are notified that the interaction is automated, and complex or escalated issues are transferred to human agents. Human customer periodically review call transcripts for quality assurance and training improvements.

Consulting decision: approve with controls.

- Mandatory disclosure that customers are interacting with AI
- Easy option to transfer to a human representative
- Data retention and privacy controls for call recordings
- Regular testing for biased or misleading responses

4. MINIMAL RISK

A travel agency uses AI to suggest alternative wording for marketing emails and promotional campaigns, designed to improve customer engagement and conversion rates. I can use inputs such as existing marketing templates, destination descriptions and offers, brand tone guidelines or historical campaign performance metrics. Marketing staff review, edit, and approve all generated content before publication.

Consulting decision: approve. The use case presents minimal impact on individuals' rights or safety, with strong human review before publication.

2. CONSULTING RESPONSE

An online retailer uses AI voice assistants for customer support calls and notifies callers that the interaction is automated. **Limited risk**

A travel agency uses AI to suggest alternative wording for marketing emails and promotional campaigns. **Minimal risk**

An employer uses AI to infer employees' political opinions and union activity from private communications to determine promotions or dismissals. **Prohibited**

A transportation authority deploys AI to manage railway signaling and prevent train collisions. **High-risk**